

25CV03681 RUTH NAREZ V. SANTA BARBARA COUNTY EMPLOYEE RETIREMENT SYSTEM, ET AL.

County: santa-barbara

Division: Civil Law & Motion

Department: 4 SB-Anacapa

Hearing date: 2026-09-04

Motion: Motions to Compel (4)

Source URL: <https://www.santabarbara.courts.ca.gov/tentative-ruling/25cv03681-0>

Source SHA-256: 9a183145197b4439d70f68b3049c56282ce230f096cd6c2412448b19fd711c3e

Tentative Ruling: RUTH NAREZ V. SANTA BARBARA COUNTY EMPLOYEE RETIREMENT SYSTEM, ET AL.

Case Number

25CV03681

Case Type

Civil Law & Motion

Hearing Date / Time

Fri, 09/04/2026 - 10:00

Nature of Proceedings

Motions to Compel (4)

Tentative Ruling

For the reasons set forth below:

Motion of Defendant SBCERS to Compel Further Responses to Form Interrogatories - General, Set One, Request for Monetary Sanctions is granted.

Plaintiff shall provide further verified code-compliant responses, without objections, no later than September 25, 2026 by 5:00 p.m.

Monetary sanctions are imposed against plaintiff and her attorney of record, Simmons Law Firm, jointly and severally, in the amount of \$1,500.00 to be paid to counsel for Santa Barbara County Employee Retirement System no later than October 16,

2026.

Motion of Defendant SBCERS to Compel Further Responses to Form Interrogatories - Employment, Set One, Request for Monetary Sanctions is granted.

Plaintiff shall provide further verified code-compliant responses, without objections, no later than September 25, 2026 by 5:00 p.m.

Monetary sanctions are imposed against plaintiff and her attorney of record, Simmons Law Firm, jointly and severally, in the amount of \$1,500.00 to be paid to counsel for Santa Barbara County Employee Retirement System no later than October 16, 2026.

Motion of Defendant SBCERS to Compel Further Responses to Special Interrogatories, Set One, Request for Monetary Sanctions is granted.

Plaintiff shall provide further verified code-compliant responses, without objections, no later than September 25, 2026 by 5:00 p.m.

Monetary sanctions are imposed against plaintiff and her attorney of record, Simmons Law Firm, jointly and severally, in the amount of \$1,500.00 to be paid to counsel for Santa Barbara County Employee Retirement System no later than October 16, 2026.

Motion of Defendant SBCERS to Compel Further Responses to Request for Production of Documents, Set One, Request for Monetary Sanctions is granted.

Plaintiff shall provide further verified code-compliant responses, without objections except as to privilege, no later than September 25, 2026 by 5:00 p.m.

For any documents withheld on a claim of privilege, plaintiff shall provide a privilege log identifying each responsive document withheld on the ground of privilege together with sufficient additional information, pursuant to Code of Civil Procedure section 2031.240, for defendants and the court to evaluate the claim of privilege.

Monetary sanctions are imposed against plaintiff and her attorney of record, Simmons Law Firm, jointly and severally, in the amount of \$3,500.00 to be paid to counsel for Santa Barbara County Employee Retirement System no later than October 16, 2026.

Background:

The first amended complaint (FAC), filed March 5, 2026, is the operative complaint. By way of the FAC, plaintiff Ruth Narez alleges causes of action against defendants Santa Barbara County Employee Retirement System (SBCERS), Greg Levin (Levin), Rebekah Bardakos (Bardakos), and Scott Dunlap (Dunlap) (collectively "defendants") for: (1) Whistleblower Retaliation, (2) Unlawful Discrimination in Violation of the Fair Employment and Housing Act (FEHA), (3) Unlawful Harassment in Violation of FEHA, (4) Unlawful Retaliation in Violation of FEHA, (5) Breach of Written Contract, (6) Breach of Implied Covenant of Good Faith and Fair Dealing, (7) Intentional Infliction of Emotional Distress (IIED), and (8) Declaratory Relief.

As alleged:

Levin, Bardakos, and Dunlap are employed by SBCERS. (Compl., ¶ 4.)

Plaintiff is a whistleblower regarding the mismanagement of funds and retirement benefits for public sector government employees. (Compl., ¶ 18.) Plaintiff repeatedly brought her concerns regarding the mismanagement of the retirement accounts, delayed service purchase completions, negligence of reciprocal inquiries by reciprocal members, along with customer complaints and several other issues. (Ibid.)

Plaintiff has been a continuous employee of the public sector and employed by the public sector for more than 10 years, and throughout her employment plaintiff regularly received positive performance reviews and merit-based promotions. (Compl., ¶ 20.) Once plaintiff began to report issues within SBCERS to Bardakos, defendants began to harass, retaliate against, and take adverse employment actions against plaintiff. (Ibid.)

On June 4, 2024, plaintiff was given an unwarranted and unsubstantiated negative Employee Performance Review (EPR) by defendants, and specifically Bardakos, and was denied a merit pay increase. (Compl., ¶ 21.) Neither of these events ever occurred at any other time throughout plaintiff's long employment with the County generally, and SBCERS specifically. (Ibid.) Prior to receiving the negative EPR and denial of a merit pay increase, plaintiff was never given any form of discipline, counseling, Performance Improvement Plan (PIP), or in any way communicated with regarding any performance issues or denial of her merit pay increase. (Compl., ¶ 22.)

Adverse employment actions taken against plaintiff include: Denial of the merit pay increase, micromanagement of work tasks, defamatory statements, alienation, ostracization, refusal to allow plaintiff to attend SBCERS employee events, subjecting plaintiff to discipline and criticism for trivial mistakes routinely made by other SBCERS employees without any form of discipline, continued negative EPR and, and continued denial of merit based pay increases. (Compl., ¶ 24.)

Plaintiff has been on a mental health medical leave of absence as of May 5, 2025, due to the continued hostile work environment created by defendants. (Compl., ¶ 33.)

On April 7, 2026, defendants filed a declaration of demurring or moving party in support of automatic extension. The declaration gave defendants an automatic 30-day extension of time within which to file a responsive pleading. On May 7, 2026, defendants filed a demurrer and a motion to strike portions of the FAC, which are scheduled to be heard on October 2, 2026.

The present motions were all filed on April 21, 2026, and include: (1) Motion of Defendant SBCERS to Compel Further Responses to Form Interrogatories - General, Set One (FI-General), Request for Monetary Sanctions; (2) Motion of Defendant SBCERS to Compel Further Responses to Form Interrogatories - Employment (FI-Employment), Set One, Request for Monetary Sanctions; (3) Motion of Defendant SBCERS to Compel Further Responses to Special Interrogatories, Set One (SROGs), Request for Monetary Sanctions; and (4) Motion of Defendant SBCERS to Compel Further Responses to Requests for Production of Documents, Set One (RFPs), Request for Monetary Sanctions.

Plaintiff did not timely file oppositions to the motions. Rather, on August 31, 2026, at 4:35 p.m., plaintiff filed an "opposition" "to the Motion to Compel Further Responses to Requests for Documents." (Opp., p. 1, ll. 24-25.) The opposition is accompanied by the declaration of plaintiff's counsel Amber L. Simmons. There is no separate statement in opposition.

SBCERS filed a reply to the opposition on September 1, 2026.

Analysis:

Late Filed Opposition and Lack of Separate Statement

As noted above, plaintiff did not timely file opposition to the motions, and only filed an “opposition” four days before the hearing. The opposition was due no later than nine court days before the hearing. (Code Civ. Proc., § 1005, subd. (b).)

“[A] trial court has broad discretion to accept or reject late-filed papers.” (Rancho Mirage Country Club Homeowners Assn. v. Hazelbaker (2016) 2 Cal.App.5th 252, 262.)

By way of declaration, plaintiff’s counsel declares that she had a medical condition that took her out of work for approximately one week and that she filed opposition as soon as she was able. (Simmons decl., ¶¶ 3-5.) The court finds the excuse lacking. The motions were filed and served more than four months ago. One week should not have affected plaintiff’s ability to comply with the deadline, or to seek leave of court to file late oppositions.

Further, the opposition is not accompanied by any separate statements.

“[A]ny motion involving the content of a discovery request or the responses to such a request must be accompanied by a separate statement.” (Cal. Rules of Court, Rule 3.1345(a).)

Additionally, the opposition is entirely unclear on whether it is meant to apply to any of the four motions other than the motion to compel further responses to the RFPs. The opposition is less than six pages long and the entire “statement of relevant facts” clearly relates to a different case than the one at hand. For example, it starts out by stating: “Margaret is the widow of John Cavanaugh Waddle (“John”). Margaret and John were married on May 7, 2022. Prior to marriage, John and Margaret lived together for several years and quarantined together at John’s home in Lompoc, California (“Home”) during the COVID-19 pandemic.” The “relevant facts” have nothing to do with this case.

The court will not consider the opposition because it was untimely and because it was unaccompanied by required separate statements. Even if the court were to consider the opposition, it would grant the motions. The opposition rests almost entirely on the argument that plaintiff and SBCERS participated in a five-day contested hearing with the Public Employment Relations Board and, pursuant to that contested hearing, plaintiff provided hundreds of pages of documents. The argument is unavailing. What SBCERS seeks here are verified responses to written discovery requests in this case that it can use in this case as evidence or as a means of identifying other potentially relevant evidence.

Discovery in General

“Civil discovery is intended to operate with a minimum of judicial intervention. “ ‘[I]t is a ‘ “central precept” ’ of the Civil Discovery Act . . . that discovery ‘ “be essentially self-executing[.]” ’ ” [Citations.]” (Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants (2007) 148 Cal.App.4th 390, 402.)

“Unless otherwise limited by order of the court in accordance with this title, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Discovery may relate to the claim or defense of the party seeking discovery or of any other party to the action. Discovery may be obtained of the identity and location of persons having knowledge of any discoverable matter, as well as of the existence, description, nature, custody, condition, and location of any document, electronically stored information, tangible thing, or land or other property.” (Code Civ. Proc., § 2017.010.)

“A trial court must be mindful of the Legislature’s preference for discovery over trial by surprise, must construe the facts before it liberally in favor of discovery. . . .” (Williams v. Superior Court (2017) 3 Cal.5th 531, 540.)

Motion to Compel Further Responses to FIs-General, FIs-Employment, and SROGs.

Plaintiff seeks to compel further responses to FIs-General Nos. 2.7, 2.12, 6.4, 6.5, 6.6, 6.7, 9.2, 10.1, 10.2, 11.1, 11.2, and 12.1.

Plaintiff seeks to compel further responses to FIs-Employment Nos. 204.2, 206.1, 208.2, 210.2, 210.3, 212.4, 212.5, 212.7, and 213.2

Plaintiff seeks to compel further responses to SROGs Nos. 17, 18, 19, 20, and 21.

Code of Civil Procedure, section 2030.010 provides, “(a) Any party may obtain discovery within the scope delimited by Chapter 2 (commencing with Section 2017.010), and subject to the restrictions set forth in Chapter 5 (commencing with Section 2019.010), by propounding to any other party to the action written interrogatories to be answered under oath. (b) An interrogatory may relate to whether another party is making a certain contention, or to the facts, witnesses, and writings on which a contention is based. An interrogatory is not objectionable because an answer to it involves an opinion or contention that relates to fact or the application of law to fact, or would be based on information obtained or legal theories developed in anticipation of litigation or in preparation for trial.”

A party shall respond to interrogatories, in writing and under oath, by (1) providing an answer containing the information sought, (2) exercising the option to produce writings, or (3) by objecting to the particular interrogatory. (Code Civ. Proc., section 2030.210 subd. (a).)

Code of Civil Procedure section 2030.220 provides that, “(a) Each answer in a response to interrogatories shall be as complete and straightforward as the information reasonably available to the responding party permits. (b) If an interrogatory cannot be answered completely, it shall be answered to the extent possible. (c) If the responding party does not have personal knowledge sufficient to respond fully to an interrogatory, that party shall so state, but shall make a reasonable and good faith effort to obtain the information by inquiry to other natural persons or organizations, except where the information is equally available to the propounding party.”

The court has reviewed each of the interrogatories and responses at issue by way of the present motions. All of the responses are insufficient, and some contain improper objections. As just one example from each of the sets of discovery, of proper requests and non-code-compliant responses:

FI-General No. 2.12: “At the time of the INCIDENT did you or any other person have any physical, emotional, or mental disability or condition that may have contributed to the occurrence of the INCIDENT? If so, for each person state: (a) the name, ADDRESS, and telephone number; (b) the nature of the disability or condition; and (c) the manner in which the disability or condition contributed to the occurrence of the INCIDENT.”

Response to FI-General No. 2.12: “Responding Party objects to this interrogatory on the grounds that it is irrelevant, overbroad, vague, invades privacy, and is not reasonably calculated to lead to the discovery of admissible evidence. This action does not arise from a physical incident or event.”

Plaintiff can justify none of the objections. She filed her FAC seeking damages for physical, mental, and emotional injuries and is seeking damages for them. Additionally, she claims those injuries in response to other discovery requests. Plaintiff has put her physical, mental, and emotional injuries at issue and she must provide a complete and code-compliant response.

FI-Employment No. 204.2: "Does the EMPLOYEE allege any injury or illness that arose out of or in the course of EMPLOYMENT? If so, state: (a) the nature of such injury or illness; (b) how such injury or illness occurred; (c) the date on which such injury or illness occurred; (d) whether EMPLOYEE has filed a workers' compensation claim. If so, state the date and outcome of the claim; and (e) whether EMPLOYEE has filed or applied for disability benefits of any type. If so, state the date, identify the nature of the benefits applied for, and the outcome of any such application."

Response to FI-Employment No. 204.2: "Yes. (a) Responding Party experienced mental and emotional distress. (b) The distress arose as a result of Defendant's retaliatory conduct following Responding Party's protected activity. (c) The condition developed over time through the defendants' hostile and retaliatory behavior and culminated in Responding Party being placed on medical leave by her physician. (d) Responding Party has filed a workers' compensation claim related to this condition. (e) Responding Party applied for and is receiving disability benefits related to medical leave. Specific dates and benefit information are reflected in Defendant's records."

The response is intentionally evasive and incomplete. The interrogatory sets forth exactly what is required, and plaintiff is bound to provide a full and complete, code-compliant, response. A responding party cannot avoid answering by referring to documents that are not produced with the response.

SROG No. 17: "If YOU contend that YOU sustained any injuries, including physical, mental, and emotional injuries as a result of SBCERS' alleged conduct, IDENTIFY all PERSONS who have knowledge of such injuries."

Response to SROG No. 17: "Plaintiff herself, family members, close associates, and healthcare providers (identity withheld subject to privilege)."

The response, like all the other responses in dispute, is evasive and incomplete. Plaintiff cannot simply decide to not specifically identify persons who have knowledge regarding plaintiff's claimed injuries.

Again, the court has reviewed all of the interrogatories and responses. None of the responses are complete and code-compliant. Plaintiff will be ordered to provide complete, code-compliant, verified further responses to all of the interrogatories.

"The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., § 2030.300, subd. (d).)

Even after numerous meet and confer attempts by defense counsel, plaintiff did not act with substantial justification and provided evasive and incomplete responses, which she did not attempt to supplement when the issues were brought to her attention. Sanctions are appropriate.

By way of the moving papers, SBCERS seeks the reduced amount of \$1,500.00 in monetary sanctions for bringing each of the motions to compel further responses to interrogatories. SBCERS' counsel declares that he is charging the reduced rate of \$400.00 per hour on this matter and has spent in excess of 2.7 hours in preparation of each of the motions. (Simpson decl., ¶ 34.) Counsel anticipates an additional one hour reviewing an opposition and two hours preparing for and attending the hearing. (Ibid.) Additionally, counsel declares that one of the managing partners at the firm spent at least 2.9 hours in preparation of the separate statement in support of each motion, at an hourly rate of \$450.00 per hour.

As the total amount incurred for the preparation and argument of the motions exceeds the requested amount by more than double, the reduced amount of \$1,500.00 will be granted for each motion, for a total of \$4,500.00 associated with the interrogatory motions. The additional amount requested by way of the reply will be denied.

Motion to Compel Further Responses to RFPs

SBCERS seeks to compel further responses to RFPs Nos. 1-38, 40-45, and 74..

Code of Civil Procedure, section 2031.010 provides, in pertinent part:

“(a) Any party may obtain discovery . . . by inspecting, copying, testing, or sampling documents, tangible things, land or other property, and electronically stored information in the possession, custody, or control of the party on whom the demand is made.

“(b) A party may demand that any other party produce and permit the party making the demand, or someone acting on the demanding party’s behalf, to inspect and to copy a document that is in the possession, custody, or control of the party on whom the demand is made.”

“The party to whom a demand for inspection, copying, testing, or sampling has been directed shall respond separately to each item or category of item by any of the following:

“(1) A statement that the party will comply with the particular demand for inspection, copying, testing, or sampling by the date set for the inspection, copying, testing, or sampling . . .

“(2) A representation that the party lacks the ability to comply with the demand for inspection, copying, testing, or sampling of a particular item or category of item, or

“(3) An objection to the particular demand for inspection, copying, testing, or sampling.” (Code Civ. Proc. § 2031.210, subd. (a).)

“A statement that the party to whom a demand for inspection, copying, testing, or sampling has been directed will comply with the particular demand shall state that the production, inspection, copying, testing, or sampling, and related activity demanded, will be allowed either in whole or in part, and that all documents or things in the demanded category that are in the possession, custody, or control of that party and to which no objection is being made will be included in the production.” (Code Civ. Proc., § 2031.220.)

“A representation of inability to comply with the particular demand for inspection, copying, testing, or sampling shall affirm that a diligent search and a reasonable inquiry has been made in an effort to comply with that demand. This statement shall also specify whether the inability to comply is because the particular item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer, in the possession, custody, or control of the responding party. The statement shall set forth the name and address of any natural person or organization known or believed by that party to have possession, custody, or control of that item or category of item.” (Code Civ. Proc., § 2031.230.)

Code of Civil Procedure, section 2031.240, provides:

“(a) If only part of an item or category of item in a demand for inspection, copying, testing, or sampling is objectionable, the response shall contain a statement of compliance, or a representation of inability to comply with respect to the remainder of that item or category.

“(b) If the responding party objects to the demand for inspection, copying, testing, or sampling of an item or category of item, the response shall do both of the following:

“(1) Identify with particularity any document, tangible thing, land, or electronically stored information falling within any category of item in the demand to which an objection is being made.

“(2) Set forth clearly the extent of, and the specific ground for, the objection. If an objection is based on a claim of privilege, the particular privilege invoked shall be stated. If an objection is based on a claim that the information sought is protected work product under Chapter 4 (commencing with Section 2018.010), that claim shall be expressly asserted.

“(c)(1) If an objection is based on a claim of privilege or a claim that the information sought is protected work product, the response shall provide sufficient factual information for other parties to evaluate the merits of that claim, including, if necessary, a privilege log.

“(2) It is the intent of the Legislature to codify the concept of a privilege log as that term is used in California case law. Nothing in this subdivision shall be construed to constitute a substantive change in case law.”

The court has reviewed all of the RFPs, as well as SBCERS’ fact specific showing of relevance for each category of documents, as well as plaintiff’s responses, and finds that plaintiff’s responses are evasive, incomplete, and, with the potential exception of privilege, finds the objections lack merit. As just two examples of proper requests and evasive responses:

RFP No. 1: “ALL DOCUMENTS supporting the allegation in the COMPLAINT that YOU exhausted all administrative remedies.”

Response to RFP No. 1: “Plaintiff objects to this request on the grounds that it is vague and ambiguous as to the phrase ‘supporting the allegation,’ overbroad, and seeks documents protected by the attorney-client privilege and attorney work-product doctrine.”

Plaintiff alleges, by way of her FAC, that she exhausted all administrative remedies (FAC, ¶¶ 13, 17.) There is, in fact, and entire subheading captioned “EXHAUSTION OF ADMINISTRATIVE REMEDIES.” (FAC, p. 3, l. 22.) SBCERS is entitled to conduct discovery regarding the affirmative defense of failure to exhaust all administrative remedies.

RFP No. 2: “ALL DOCUMENTS and COMMUNICATIONS RELATING TO YOUR alleged reporting of ongoing illegal actions to SBCERS.”

Response to RFP No. 2: “Subject to and without waiving these objections, Plaintiff will produce non-privileged documents and communications reflecting her good-faith reports of customer service failures, service purchase delays, reciprocal documentation delays, and retirement administration concerns raised internally to SBCERS and related County personnel.”

The request seeks discoverable documents. Plaintiff’s response is evasive and non-compliant. Code of Civil Procedure sections 2031.210, 2031.220, 2031.230, and 2031.240 (quoted above) set forth the requirements of responding to the RFPs. Plaintiff’s response leaves no way to determine whether she intends on fully complying with the request or if she is going to withhold certain documents. She must be clear in her response and follow the clear directions contained in the Code of Civil Procedure.

The remainder of the requests relate to things such as plaintiff’s other allegations and documents that support plaintiff’s contentions and claimed damages.

Plaintiff will be ordered to provide further, code-compliant, verified responses. For any document withheld based on a claim of privilege, plaintiff will be ordered to produce a privilege log.

“Except as provided in subdivision (d) [not applicable here], the court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel compliance with a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2031.320.)

Even after numerous meet and confer attempts by defense counsel, plaintiff did not act with substantial justification and provided evasive and incomplete responses, which she did not attempt to supplement when the issues were brought to her attention. Sanctions are appropriate.

By way of the moving papers, SBCERS seeks the reduced amount of \$3,500.00 in monetary sanctions for bringing the motion to compel further responses to the RFPs. SBCERS' counsel declares that he is charging the reduced rate of \$400.00 per hour on this matter and has spent in excess of 7.1 hours in preparation of the motion. (Simpson decl., ¶ 32.) Counsel anticipates an additional one hour reviewing an opposition and two hours preparing for and attending the hearing. (Ibid.) Additionally, counsel declares that one of the managing partners at the firm spent at least 4.6 hours in preparation of the separate statement in support of each motion, at an hourly rate of \$450.00 per hour.

As the total amount incurred for the preparation and argument of the motions exceeds the requested amount by approximately double, the reduced amount of \$3,500.00 will be granted. The additional amount requested by way of the reply will be denied.

Judges

Judge Donna D. Geck

Dept. 4 SB-Anacapa

1100 Anacapa Street P.O. Box 21107

Santa Barbara, CA 93121-1107

US